Individual Retirement Counseling

Mr. Greg Bell
Director, Industrial Relations
American Postal Workers
Union, AFL-CIO
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Washington, DC 20005-4128

RE: Q00C-4Q-C 07097274
Washington, DC 20260-4100

Recently, the parties discussed in pre-arbitration the above-referenced case which is currently pending national-level arbitration.

The dispute involves Article 19 changes to the Employee and Labor Relations Manual regarding individual retirement counseling.

After full discussion of all the issues in this matter, the parties agree to the following:

If an employee who is eligible for and has requested individual retirement counseling wishes to have this counseling on the clock, local management will arrange reasonably private space for this purpose and will permit the employee's spouse and/or advisor to be with the employee during this process. If the employee's spouse or advisor is a Postal Service employee, only the employee receiving the requested retirement counseling will be on the clock.

If such employee is not able to call the Human Resources Shared Services Center to begin or complete the individual retirement counseling process without assistance, local management will offer assistance to facilitate completion of the individual retirement counseling. The District Manager, Human Resources will be contacted and will determine who will provide such assistance. Such assistance will include but not be limited to completion of Standard Form 2801 and any other forms related to Life/Health/Thrift Savings Plan (TSP)/ Beneficiary and any Military or civilian service deposit selection issues. Whether an employee who requests individual retirement counseling is unable to start or complete the retirement counseling will be determined jointly by management and union at the local level on a case-by-case basis. This will include employees who have started and request assistance during the individual retirement counseling process.

Please sign and return the enclosed copy of this decision as your acknowledgment of the agreement to settle this case, removing it from the pending national arbitration listing.

Sincerely,

Mary Hércules
Labor Relations Specialist
Contract Administration (APWU)
USPS

Greg Bell
Director, Industrial Relations
American Postal Workers Union,
AFL-CIO

Date: September 21, 2009